

Issues on Intellectual Property Rights

Learner's Module in SPA CHOIR 10

Quarter 1 • Module 3



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Republic of the Philippines
DEPARTMENT OF EDUCATION
Cordillera Administrative Region
SCHOOLS DIVISION OF BAGUIO CITY
#82 Military Cut-off, Baguio City

Published by:
DepEd Schools Division of Baguio City
Curriculum Implementation Division

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2020

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PREFACE

This module is a project of the Curriculum Implementation Division particularly the Learning Resource Management and Development Unit, Department of Education, Schools Division of CAR which is in response to the implementation of the K to 12 Curriculum.

This Learning Material is a property of the Department of Education- CID, Schools Division of CAR. It aims to improve students' performance, specifically in Special Program in the Arts.

Date of Development	: October 2020
Resource Location	: DepED Schools Division of Baguio City
Learning Area	: Special Program in the Arts - Choir
Grade Level	: 10
Learning Resource Type	: Module
Language	: English
Quarter/Week	: Q1/W3 and W4
Learning Competency/Code	: 1. Outlines the different issues affecting the music profession. SPA_MU10-Ib-2 2. Advocates intellectual property rights. SPA_MU10-Ic-3

ACKNOWLEDGEMENT

The developer wishes to express her gratitude to those who help in the development of this learning material. The fulfillment of this learning material would not be possible without these people who gave their support, helping hand and cooperation.

The developer extends her fullest gratitude and appreciation to Dr. Lolita A. Manzano and Dr. Jennifer C. Pinlac for their technical support in the crafting of this module.

To my head teachers, Sir Ortez D. Gabol, Sir Francis B. Lumiwes and Sir Nicodemus B. Gam-ad, in the MAPEH department for giving us moral support and giving us opportunity to discover our skills as writers.

And to all in one way or the other help me to finish this learning material. Thank you and may God be with you all.

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TABLE OF CONTENTS

	Page
Copyright Notice.....	ii
Preface	iii
Acknowledgement.....	iv
Table of Contents.....	v
Title Page.....	1
Introduction	2
Learning Objectives	
Pretest.....	3
Lesson Proper.....	4
Review.....	4
Activity 1.....	5
Discussion of Activity 1.....	6
Enrichment	9
Generalization	9
Application	9
Post-Assessment	10
Answer Key.....	11
Reference Sheet.....	12

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What I Need to Know

This learning material will discuss to you the issues on intellectual property rights and the issues affecting music professions.

For the Facilitator:

This learning material will serve as a guide for the facilitator to teach the issues on intellectual property rights in music.

For the Learner:

Read and understand the lessons carefully. Instructions are given in each activity. You just need to follow the directions and you will be guided as you move from one page to another. The lessons will also prepare you for a post assessment at the end of the module.

Learning Objectives

At the end of the session you will be able to:

- Identify the different issues in intellectual property rights.
- Value awareness on the different issues affecting the music profession.
- Give some specific solution on how to avoid issues on intellectual affecting the music industry

What I Know

A. Multiple Choices. Write the letter of the correct answer on the space provided.
Use capital letters only.

- _____ 1. Which of the following is NOT automatically covered by copyright?
 - a. music
 - b. software
 - c. inventions

- _____ 2. Which of these statements is true?
 - a. Copyright is automatic.
 - b. Copyright does not last forever and can expire after a certain time.
 - c. Both statements.

- _____ 3. If you create a piece of work at school, who owns the copyright?
 - a. You
 - b. The school.
 - c. Both

- _____ 4. Which of the following is illegal?
 - a. Copying a music recording to give to a friend.
 - b. Copying a music recording to your MP3 player?
 - c. Copying a music recording to store in your collections.

- _____ 5. Software is protected by copyright which makes it illegal to what?
 - a. Purchase the software from a download website.
 - b. Make copies to give to family and friends.
 - c. Both statements

- _____ 6. The legal right of the owner of intellectual property.
 - a. patent
 - b. copyright
 - c. ownership

- _____ 7. It refers to the rights given to persons over the creations of their minds
 - a. patent
 - b. copyright
 - c. Intellectual property rights

- _____ 8. It refers to the copying and distributing of recordings of a piece of music for which the rights owners (composer, recording artist, or copyright-holding record company) did not give consent.
 - a. music piracy
 - b. plagiarism
 - c. infringement

_____ 9. It is the illegal copying of a computer program, music, a film, etc. and sell it.

- a. pirating
- b. plagiarism
- c. infringement

_____ 10. It refers to the use or close imitation of another author's music while representing it as one's own original work.

- a. music piracy
- b. infringement
- c. music plagiarism

B. True or False. Write true if the statement is correct and False if incorrect. Write the answer on the space provided.

_____ 1. Music itself is protected by copyright law.

_____ 2. Inventions of musical instruments are covered by copyright law.

_____ 3. The musical compositions and sound recordings are protected under Copyright Law.

_____ 4. Copyright enables those who hold rights in a work to decide how, when and where it may be used and by whom.

_____ 5. Authorization is needed from those with rights in the original work if someone translates the lyrics of a song and wants to record these using the same music as that of the original song.

What's In?

Issues on INTELLECTUAL PROPERTY RIGHTS (IP) are a category of property that includes intangible creations of the human intellect. It includes patent, copyright, industrial design right, trademarks. The term "intellectual property" began to be used in the 19th century, though it was not until the late 20th century that intellectual property becomes common place in most of the world legal system.

What's New?

Is music an intellectual property?

Music itself is protected by copyright law. If a musician invents a new instrument or a new part for an instrument those are protected under patent law. The musical compositions and sound recordings are protected under Copyright Law.

What is Copyright in the music industry?

These rights are defined within national copyright laws which are, in large part, shaped by international treaties, many of which are administered by WIPO (World Intellectual Property Organization). Copyright law defines the rights conferred on authors of original works, and those who perform them, as well as those who support their widespread dissemination (i.e. record companies and broadcasters).

Once a work has been created – lyrics or musical notes written down, arranged or recorded – copyright protection kicks in. There is no formal obligation to register a work with a national authority, although in some countries, such as the US, registering a work with the Library of Congress is the only way to bring a court action for infringement.

Activity 1: Essay. How does copyright infringement affect the music industry? (10).

[illegible]

B. Write word FACT if the statement is correct the BLUFF if it is incorrect. Write your answer on the space provided.

- _____ 1. Intellectual property is a category of property that includes intangible. creations of human intellect.
- _____ 2. Music itself is protected by copyright law.
- _____ 3. Copyright is a form of legal protection given too many kinds of works such as Musical composition, or songs, Lyrics, Sounds, CD'S, LP, and Singles.
- _____ 4. Music copyright is not vital for musicians this is dream affect how they get paid for their music.
- _____ 5. Music pirating has a negative impact and unlawful to the music industry.

What is it?

Purpose of Copyright

In a nutshell, copyright enables those who hold rights in a work to decide how, when and where it may be used and by whom. One of the purposes of copyright is to create the conditions for creator to be able to earn a living from their talent by getting a financial return on the time and energy they put into producing a work and being recognized as its author.

Copyright includes economic rights which give the creator the right to authorize, prohibit or obtain financial compensation for:

- the reproduction of a work, for example, on a CD, online or in a film;
- the distribution of copies of a work;
- the communication to the public of a work. If a piece of music is performed in public or played over a sound system in a shopping mall or a disco, a royalty is payable to authors, performers and/or right holders according to the national legislation.
- broadcasting or otherwise making available a work to the public (i.e via radio, TV or online)

- the adaptation of a work (if someone translates the lyrics of a song and wants to record these using the same music as that of the original song, or changes an original work adding new elements to it, they first need to get authorization from those with rights in the original work). The new adapted work also qualifies for copyright protection. Depending on the terms of the agreement to license the original work, anyone seeking to publish or use such a work may need to get authorization to do so from those with rights in the original work

SEVERAL STEPS THAT CAN BE TAKEN TO OVERCOME COPYRIGHT ISSUES

1. Get permission from the original owner

Five simple five-step procedure in getting permissions:

- a. Determine if permission is needed.
- b. Identify the owner.
- c. Identify the rights needed.
- d. Contact the owner and negotiate whether payment is required.
- e. Get your permission agreement in writing.

2. Trademark and Copyright your own content

3. Obtain a legal copyright

4. Trademark your property

Music piracy is the copying and distributing of recordings of a piece of music for which the rights owners (composer, recording artist, or copyright-holding record company) did not give consent. In the contemporary legal environment, it is a form of copyright infringement, which may be either a civil wrong or a crime depending on jurisdiction. The late 20th and early 21st centuries saw much controversy over the ethics of redistributing media content, how much production and distribution companies in the media were losing, and the very scope of what ought to be considered piracy – and cases involving the piracy of music were among the most frequently discussed in the debate.

Music Plagiarism- is the use or close imitation of another author's music while representing it as one's own original work. Plagiarism in music how occurs in two contexts-with a musical idea that (is a melody of motif) or sampling (taking a portion of one sound recording and reusing it in a different song).

What's More

Activity 1: Directions: Arrange the jumbled letters to get the correct answers. Write the answer on the space provided.

- _____ 1. A category of property that includes intangible creations of the human intellect. It includes patent, copyright, industrial design right, trademarks.

L N U T A I L T E L E C T Y P R O P E R

- _____ 2. The use or close imitation of another author's music while representing it as one's own original work. Plagiarism in music how occurs in two contexts-with a musical idea that (is a melody of motif) or sampling (taking a portion of one sound recording and reusing it in a different song).

G I A P L A R I S M

- _____ 3. The copying and distributing of recordings of a piece of music for which the rights owners (composer, recording artist, or copyright-holding record company) did not give consent.

S I M C U R A I C P Y

- _____ 4. It refers to a form of Legal protection given too many kinds of created works such as musical composition, or songs, lyrics, records, CD, LP'S, singles.

O I G Y C H P T

- _____ 5. These are the problem affecting the music industry.

C S M I U S U I S E S

What I Have Learned

Instruction: Define the different issues affecting music profession on the second column, then write ways to overcome these issues on the third column.

DIFFERENT ISSUES AFFECTING MUSIC PROFESSION	MEANING	SOLUTION
1. Music Plagiarism		
2. Copyright Infringement		
3. Intellectual Property		
4. Music Pirating		

What I Can Do

As an aspiring music artist and a student, in what way can you promote the awareness in the intellectual property in your field of specialization?

Post Assessment

A. Identification: Identify the word being referred to. Write your answers on the space provided.

- _____ 1. It refers to the legal right of the owner of intellectual property.
- _____ 2. It refers to the rights given to persons over the creations of their minds.
- _____ 3. It refers to the copying and distributing of recordings of a piece of music for which the rights owners (composer, recording artist, or copyright-holding record company) did not give consent.
- _____ 4. It refers to illegally copying of a computer program, music, a film, etc. and sell it.
- _____ 5. It refers to the use or close imitation of another author's music while representing it as one's own original work.

B. Multiple Choices. Write the letter of the correct answer on the answer sheet. Use capital letters only.

- _____ 1. Which of the following is NOT automatically covered by copyright?
 - A. music
 - B. software
 - C. inventions
- _____ 2. Which of these statements is true?
 - A. Copyright is automatic.
 - B. Copyright does not last forever and can expire after a certain time.
 - C. Both statements.
- _____ 3. If you create a piece of work at school, who owns the copyright?
 - A. You
 - B. The school.
 - C. Both
- _____ 4. Which of the following is illegal?
 - A. Copying a music recording to give to a friend.
 - B. Copying a music recording to your MP3 player?
 - C. Copying a music recording to store in your collections.

- _____ 5. Software is protected by copyright which makes it illegal to what?
- A. Purchase the software from a download website.
 - B. Make copies to give to family and friends.
 - C. Both statements
- D. True or False. Write true on the answer sheet if the statement is correct and False if incorrect.
- _____ 6. Music itself is protected by copyright law.
- _____ 7. Inventions of musical instruments are covered by copyright law.
- _____ 8. The musical compositions and sound recordings are protected under Copyright Law.
- _____ 9. Copyright enables those who hold rights in a work to decide how, when and where it may be used and by whom.
- _____ 10. Authorization is needed from those with rights in the original work if someone translates the lyrics of a song and wants to record these using the same music as that of the original song.

Answer Key:

- Post Assessment**
1. A.
 2. copyright
 3. intellectual property rights
 4. music piracy
 5. pirating
1. C
 2. C
 3. B
 4. A
 5. A

- What's More**
1. Intellectual Property
 2. Plagiarism
 3. Music piracy
 4. Copyright
 5. Music issues

- Pre-Assessment:**
- A. 1. C
 2. C
 3. B
 4. A
 5. A
 6. B
 7. C
 8. A
 9. A
 10. C
- B.
 1. True
 2. false
 3. true
 4. true
 5. true

References

https://en.wikipedia.org/wiki/Music_piracy

<http://www2.gvsu.edu/pontiusd/morals.html>

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dictionary.cambridge.org

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https://www.wipo.int/ip-outreach/en/ipday/2015/creating_value_from_music.html

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